



Market Oversight Regulation

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CHAPTER I. GENERAL PROVISIONS

§1. Purpose

The purpose of this Regulation is to stipulate the matters necessary for the market surveillance, investigation into abnormal trading activities, member inspection, inter-market surveillance, and the disciplinary actions taken against the member and their officers and employees, preventative activity for unfair trading, etc. according to the outcome thereof pursuant to [§403] of the Financial Investment Services and Capital Markets Act (hereinafter referred to as “the Act”) (Amended on November 24, 2006; January 28, 2009; July 8, 2015)

§2. Definitions

(1) The term "abnormal trading" in this Regulation shall mean the abnormal trading pursuant to [§355] of the Enforcement Decrees of the Act, including the trading in which the price or trading volume of securities or exchange-traded derivative products (hereinafter referred to as “the issue”) traded in the securities markets (including the trading on multilateral trading companies; the same hereinafter) or the Derivatives Market (hereinafter referred to as “the Markets”) show noticeable fluctuation. (Amended on November 24, 2006; January 28, 2009; February 5, 2025)

(2) The term “market surveillance” in this Regulation shall mean monitoring, investigating and analyzing the buying and selling of securities and exchange-traded derivative products (hereinafter referred to as “the trading”) in the Markets, the status of orders and quotations for such trading or the associated reports, disclosures, rumors, news, etc. (hereinafter referred as the “rumors, etc.”). (Amended on January 28, 2009)

(3) The term “investigation” in this Regulation shall mean the task of determining if the trading of an issue suspicious of abnormal trading (hereinafter referred to as “the issue suspicious of abnormal trading”) or the order or quotation placed for such trading corresponds to unfair trading practices, including the violation of [§147, §172 through §174, §176, §178, §178-2 and §180] of the Act. (Amended on November 24, 2006; January 28, 2009; July 8, 2015)

(4) The term “inspection” in this Regulation shall mean the in-depth examination of business reports, financial status, account books and other documents and materials of the members (including trading participants; the same hereinafter) in order to ascertain that the member complies with the business-related regulations (in the case of trading participants, it refers to this regulation and the business standards of the relevant multilateral trading company; hereinafter referred to as “the business-related regulations”) of the Korea Exchange (hereinafter referred to as “the Exchange”) or violates §178-2 of the Act (Amended on November 24, 2006; January 28, 2009; July 8, 2015; February 5, 2025)

(5) The term “inter-market surveillance” in this Regulation shall mean the market surveillance, investigation and inspection related to the linked trading. (Amended on January 28, 2009)

(6) [Deleted on February 5, 2027]

(7) The term “futures trading” in this Regulation shall mean the trades coming under [§5(1)1] of the Act, which are conducted in the Derivatives Market in accordance with the principles and methods stipulated in the Derivatives Market Business Regulation. (Amended on January 28, 2009)

(8) The term “options trading” in this Regulation shall mean the trades coming under [§5(1)2] of the Act, which are conducted in the Derivatives Market in accordance with the principles and methods stipulated in the Derivatives Market Business Regulation. (Amended on January 28, 2009)

(9) The term “linked trading” in this Regulation shall mean, in the market or between the market and other Exchange market, the trades made between two (2) or more securities issues, between Exchange-traded derivative products, or between securities issues and Exchange-traded derivative products, of which prices are correlated. (Amended on November 24, 2006; January 28, 2009; February 5, 2025)

(10) The term “surveillance staff” in this Regulation shall mean the employees of the Exchange, who perform the tasks of market surveillance, investigation, inspection, inter-market surveillance or preventive actions against unfair trading. (Amended on November 24, 2006; January 28, 2009; July 8, 2015)

(11) [Deleted on January 28, 2009]

(12) Additionally, other terms used in this Regulation shall have the same meanings given to them in the Act and the regulations governing the business of the Exchange. (Amended on January 28, 2009)

CHAPTER II. MAINTENANCE OF SOUNDNESS OF MARKET

Section 1. Obligation to Uphold Fair Trade Practices

§3. Prohibited Activities of Members

A member or its officers and employees shall not undertake the activities that correspond to any of the following subparagraphs: (Amended on November 24, 2006; January 28, 2009)

1. Practices that pursue the benefit for itself or a third party, such as utilizing the order information of customers or placing quotations (including the orders; the same hereinafter) before processing the concerned orders of customers;
2. In connection with the trades carried out in the Markets, practices that directly or indirectly offer a customer financial benefits, including the compensation of loss or commission fees or transfer of profit or loss of customers without a justifiable reason;
3. Practices that result in profit or avoidance of loss by selling (buying) the concerned issues after having explicitly or implicitly recommended to buy (sell) a specific issue, or by explicitly or implicitly recommending to buy (sell) the concerned issue after having bought (sold) a specific issue;
4. Practices that set off an excessive speculative trading of the administrative issues, investment alert issue, investment caution issue, investment risk issues or issues with small number of issued shares or negotiable shares;
5. Practices of conducting a trade using a customer's account without receiving an entrustment of orders from the customer or requesting the customer to approve such trade afterward;
6. Practices in which, although a member is aware of the facts that may have significant influence on the value of a security, without informing the customers of such facts, the member sells that security held by him/her or third party after recommending a customer to purchase it, or the member purchases that security after recommending a customer to sell it or let the customer to sell it to a third party;
7. Practices of using information gained in the course of business for the purpose of gaining profits for itself or a third party;
8. Practices stipulated in subparagraphs 1, 3 and 6 that are related to linked trading; and

9. Any other practices that may undermine the investor protection or Market reliability.

§4. Prohibition of Activities Undermining Fair Trade Practice

(1) A member or its officers and employees shall not undertake the activities that correspond to any of the following subparagraphs:

1. With regard to the quotations participating in the determination of specific prices such as opening prices, the highest prices, the lowest prices or closing prices, the practices that bring about the rise/fall or fixation/stabilization of price by submitting quotations continually or sequentially;
2. The practices of extensive submission of the quotations that participate in the determination of the price by way of periodic call auction such as determination of opening price of an initially listed issue;
3. Practices of block trading after raising /lowering or fixing/stabilizing the market price;
4. Practices of trading or submitting quotations for a specific issue excessively in view of the demand-and-supply in the Markets, which could raise a concern about having an adverse influence on the market price or causing a misunderstanding on the market price;
5. Practice of submitting a large number of quotations that are unlikely to be matched or quotations of which prices are same as or similar to the most recent price or best quotation price, and then making repeated correction/cancellation of concerned quotations;
6. Practices of submitting the quotations with the same price, by dividing them into several small quantities, for a fixed period, thus unfairly influencing the market price or quantity allocation or causing a concern about unfair influence on the market price;
7. Practices of submitting quotations at the market closing time for the purpose of fixing the closing price of day as the highest or the lowest price of day or bring it closer thereto;
8. Practices of, after continually acquiring a share at a high (low) price during the day or a specific period, selling it at a lower (high) price or practices of repeating the trade at the same price;
9. Practices of matched sale that has no intention of acquiring or disposing a share or wash sale that does not intend to transfer the title;

10. Practices of spreading rumors, etc. about an issue for such purpose as changing the market price;

11. Practices that unfairly influence or may have a possibility of unfairly influencing the market price, by submitting quotations that participate in the determination of expected execution price or expected execution quantity; and

12. Additionally, any practice that undermines the fair trading system or diminishes the credibility of the market.

(2) In connection with the linked trading, a member or its officers and employees shall not carry out the activities that correspond to any of following subparagraphs: (Amended on January 28, 2009)

1. For the purpose of gaining profit or avoiding loss, the practices of conducting a wash sale or placing a matched order by a party who holds the issue of securities or exchange-traded derivatives on either side of trade.

2. For the purpose of swaying other investors to trade the issues held, the practices of changing the price of issue by trading a different issue or spreading rumors, etc. about the different issue, by a member who holds an issue on one side of trade among the issues of securities or exchange-traded derivatives being traded;

3. For the purpose of gaining profits or avoiding loss of a third party or self, the practices of intentionally changing or fixing the price difference between another issue and the issue held, by a member who holds the issue on one side of trade among the issues of securities or exchange-traded derivatives being traded;

4. After having recommended a specific issue of securities as having investment merits, the practice of trading the exchange-traded derivatives contracts based on such recommendation for the purpose of gaining profit or avoiding loss; or after having accumulated the open interests of exchange-traded derivatives contracts, recommending to sell or buy the related securities on the basis of such recommendation for the purpose of gaining profit or avoiding loss from the concerned open interests;

5. The practices of having an influence on the settlement of futures trade, option exercise in options trade (including the buying or selling that offsets the open interests before the last trading day) or price of securities by changing or fixing the price of security or exchange-traded derivative contract;

6. The practices of favorably influencing or obstructing the allotment of option exercise in options trade by fixing or changing the price of security or exchange-traded derivative contract being traded; (Amended on January 28, 2009)

7. The practices that lead to the calculation of favorable margin for futures or options trade (including the customer margin specified in the Derivatives Market

Business Regulation) by changing or fixing the price of security or exchange-traded derivative contract being traded;

8. The practices of unfairly influencing or having a possibility of unfairly influencing the price, after having accumulated a large quantity of open interests of exchange-traded derivative contract, by submitting a large quantity of quotations for security issue, which are unlikely be matched, for the purpose of gaining profits or avoiding loss from such open interests, or submitting a large quantity of quotations for security issue, which have the same prices as the most recent market price or the best quotation price or the prices similar thereto;

9. The practices of gaining illegal profit in the futures or options trade, by submitting quotations participating in formation of the expected execution prices or the expected execution volume of a security; and

10. In addition to subparagraphs 1 through 9, in connection with linked trading, the practices that undermine the fair trading system or diminish the credibility of the market.

(3) A member or its officers and employees shall not recommend the practices corresponding to any subparagraphs of paragraph (1) or any subparagraphs of paragraph (2) to any customer or shall not receive any entrustment corresponding to such practices. (Amended on January 28, 2009)

Section 2. Preventative Actions against Unfair Trading

§5. Preventative Actions by the Market Oversight Commission

(1) For the purpose of maintaining the fair trading practices and protecting the investors, the Market Oversight Commission (hereinafter referred to as “the Commission”) may undertake the preventative actions against unfair trading for the members, stock-listed corporations or professional investors. (Amended on January 28, 2009)

(2) The Commission, when it is deemed necessary for the prevention of unfair trading practices, may request the concerned member to take preventative measures in writing (including the electronic document in accordance with the Act on Promotion and Communications Network Utilization and Information Protection, etc.; the same hereinafter) or by phone, etc. (hereinafter referred to as the “request for preventative measures”). (Amended on November 24, 2006; January 28, 2009)

(3) [Deleted on March 7, 2012]

(4) The Commission shall stipulate the matters necessary for the preventative actions against unfair trading practices, including the request for preventative measures

pursuant to paragraphs (1) and (2), in the Enforcement Rules of this Regulation (hereinafter referred to as the “Enforcement Rules”). (Amended on November 24, 2006; July 20, 2007; January 28, 2009; March 7, 2012)

§5-2. Designation as Investment Caution Issues and Publication thereof, etc.

(1) In order to prevent unfair trading practices and protect investors, the Commission may designate the stocks and the securities falling under any of the following subparagraphs, which are specified in the Enforcement Rules, as investment caution issues and publish such fact:

1. An issue traded intensely by a few branch offices;
2. An issue traded intensely through a few accounts; and
3. In addition, an issue that needs to be brought to investor’s attention, which is stipulated in the Enforcement Rules.

(2) The Commission shall stipulate the matters that are necessary for the designation as and publication of investment caution issues pursuant to paragraph (1).

[March 7, 2012]

§5-3. Designation and Publication of Investment Alert Issue and Investment Risk Issue, etc.

(1) For the prevention of unfair trading and investor protection, the Commission may designate and publish the stock and the securities specified in the Enforcement Rules, of which the price (referred to as “the price” hereinafter this Article) surges for a fixed period, as investment alert issue. (Amended on January 28, 2009)

(2) In case where the price surges again within a given period of time after having been designated as investment alert issue or released from such designation, the Commission may designate and publish the concerned issue as investment risk issue.

(3) In case of coming under any of the following subparagraphs, the Commission may request the concerned Market to suspend the trading of concerned issue for a fixed period of time; (Amended on March 7, 2012)

1. Case where the issue price surges again after having been designated as an investment alert issue;
2. Case of having been designated as an investment risk issue; and
3. Case where the issue price continues to surge after having been designated as an

investment risk issue.

[March 7, 2012]

(4) Notwithstanding paragraphs (1) through (3), when it is deemed that the designation as investment caution issue or investment risk issue or the trade suspension is clearly inappropriate, the Commission may not make such designation or request the trade suspension.

(5) The matters necessary for the designation as investment caution issue or investment risk issue, prior notice for and exception to such designation and release from such designation, and request for trade suspension shall be stipulated in the Enforcement Rules. (Amended on March 7, 2012)

[July 20, 2007]

§6. Preventative Actions by Members

(1) For the purpose of preventing unfair trading practices, the members shall operate an in-house computer system (hereinafter referred to as the “monitoring system”) that is capable of monitoring and analyzing the details of orders, quotations, trade execution, etc. In this case, the members shall observe the operating standards and the matters to be watched closely by the monitoring system, which are recommended by the Commission.

(2) The members shall notify the details of findings through the monitoring system and the outcomes of actions taken thereafter to the Commission by the 10th day (in case where it is a public holiday pursuant to the Regulation on Government and Public Offices Holidays or Saturday, it shall be postponed to the next trading day; the same hereinafter) of the month following the end of each quarter. (Amended on November 24, 2006; January 28, 2009))

(3) The Commission may make the recommendations on the matters necessary for the in-house monitoring activities of member, including the matters relating to the operation of monitoring system, and in this case, the members shall incorporate such recommendations of the Commission in the internal control standards, provided that there are no special reasons.

(4) The Commission may provide the technical support or advice that is necessary for the operation of monitoring systems of the members.

(5) In case where, as a result of preventative action, including the operation of the monitoring system pursuant to paragraph (1), a member refuses to accept orders (limited to cases where it falls or is likely to fall under unfair trade practices, cases where it is necessary for the public interest, investor protection, or stabilization of trading order in the market, and cases where it violates regulations related to short selling) pursuant to [§4(3)] of this regulation, [§84(1) & (2)] of the KOSPI Market Business Regulation,

[§40(1) & (3)] of the KOSDAQ Market Business Regulation, [§59(1) & (3)] of the KONEX Market Business Regulation, [§124(3)] of the Derivatives Market Business Regulation, and the business standards of the multilateral trading company, the member shall inform other members of such fact. (Amended on September 12, 2008, January 28, 2009; September 13, 2013; February 5, 2025)

(6) The matters necessary for the operation of monitoring systems of the members, notification and other in-house monitoring of the members pursuant to paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

§7. Reporting Requirement of Members for the Prevention of Unfair Trading

(1) When becoming aware that an officer, employee or major shareholder (referring to the major shareholders pursuant to [§9(1)] of the Act) of a stock-listed corporation has entrusted trading of the shares issued by the concerned listed company or other issues specified in the Enforcement Rules, the members shall report the details of such entrustment to the Commission without delay. (Amended on November 24, 2006; January 28, 2009)

(2) When becoming aware of rumors, etc. that may undermine the fair trade practice or discovering an indication or incidence of abnormal trading, the member shall report details of such indication or incidence to the Commission without delay.

(3) In case where a member receives a request for account opening, trading, lending, borrowing, or other transactions related to transactions on the market from a person subject to transaction restrictions in accordance with Article 426-3, Paragraph 3 of the Act, the member must report the fact of the request and the rejection or processing result to the Commission without delay. (Amended on January 28, 2009; April 11, 2025)

(4) In case where a customer has filed a civic appeal in relation to the fair trading and investor protection or there is a dispute with a customer, the member shall report such civic appeal or dispute to the Commission by the 10th day of the month following the end of the quarter to which the month when the concerned appeal or dispute was filed belong. (Amended on November 24, 2006)

(5) The reporting pursuant to paragraphs (1) through (4) and other necessary matters shall be stipulated in the Enforcement Rules. (Amended on April 11, 2025)

CHAPTER III. INVESTIGATION INTO ABNORMAL TRADING AND INSPECTION OF MEMBERS

Section 1. General Provisions

§8. Matters to be Observed by Surveillance Staff

(1) The surveillance staff shall perform the tasks relating to the investigation, inspection or inter-market investigation and inspection in strict fairness on the basis of the facts and evidences in accordance with the relevant laws and regulations and the instructions of the Commission. (Amended on November 24, 2006)

(2) The market surveillance staff shall not provide or leak the confidential information acquired in the course of work to other parties or use such information for the purpose other than the investigation or inspection. (Amended on November 24, 2006)

§9. Withdrawal from Investigation or Inspection

In the event of coming under any of the following cases, the market surveillance staff shall withdraw himself or herself from the investigation or inspection by obtaining the approval of the Commission after submitting the completed withdrawal application to the Commission: (Amended on November 24, 2006; January 28, 2009)

1. In cases where the details of investigation or inspection are directly related to the self-interest of surveillance staff; and

2. In case where there is a possibility of undermining the fairness in performing the tasks, because the surveillance staff is within the 4th degree of blood relative or the 2nd degree of matrimonial relative of an officer and employee of the member or a customer and spouse of customer, who are implicated to the details of the investigation or inspection. (Amended on November 24, 2006)

(2) The matters relating to the withdrawal application mentioned in paragraph (1) shall be stipulated in the Enforcement Rules.

§10. Reward for Information

(1) The Commission may offer a monetary reward to an informant who has provided information on matters related to unfair trading. (Amended on November 24, 2006)

(2) The Commission shall not reveal or leak to a third party the information about the informant, including the personal details, unless a written consent of informant has been obtained.

(3) The matters such as the handling of report on unfair trading mentioned in paragraph (1) and the payment criteria for monetary reward shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§10-2. Request for Provision of Information to Multilateral Trading Company

(1) The Commission may request multilateral trading companies to provide relevant information for market monitoring, investigation, and inspection.

(2) Pursuant to paragraph (1), the method of requesting provision of information and other necessary matters shall be stipulated by the Enforcement Rules.

[February 5, 2025]

Section 2. Market Surveillance

§11. Market Surveillance

(1) The Commission shall carry out the market surveillance by detecting the issues in suspicion of abnormal trading to undertake the investigation, identifying the trades that are likely to violate the business-related regulations or [§178-2] of the Act to conduct the inspection, and, when there is a possibility of abnormal trading, selecting the issues that need an intensive monitoring considering the disclosure, rumors, new reports, etc. (hereinafter referred to as the “issue with abnormally soaring price”) to prevent any unfair trades. (Amended on January 28, 2009; July 8, 2015; February 8, 2017; February 5, 2025)

(2) The detection of issues suspicious of abnormal trading pursuant to paragraph (1) shall be based on the criteria that are set by the Commission while taking into consideration such matters as the trading type, price fluctuation and size of trading volume of securities and exchange-traded derivative products and the degree of participation in price formation and trading, and the details of rumors, etc. (Amended on November 24, 2006; January 28, 2009)

(3) Members shall submit to the Commission the following data required for market surveillance noted in [§402(1)1] of the Act (hereinafter referred to as “market surveillance data” in this Article): [October 28, 2025]

1. Account Identification Number; and [October 28, 2025]

2. Pseudonymized information (meaning the information has been partially or entirely replaced so that it is impossible to identify the data subject without additional

information) capable of verifying the real name, such as the resident registration number, business registration number, tax identification number, or identification number of foreign nationals (passport number, business registration number, or tax identification number). [October 28, 2025]

(4) The types of market surveillance and submission method of market surveillance data noted in paragraph (1) and (3) and other necessary matters for market surveillance shall be stipulated in the Enforcement Rules. (Amended on October 28, 2025)

§12. Measures Taken in Connection with the Market Surveillance

In connection with the rapid change of trading situation or the rumors, etc. in the course of market surveillance, if it is deemed necessary for the investor protection, the Commission may request the Market concerned to take the measures stipulated in any of the following subparagraphs: (Amended on November 24, 2006 January 28, 2009; February 8, 2017)

1. An inquiry about the existence of disclosure relating to the rapid change in trading situation or the truthfulness of rumors, etc.;
2. Suspension of trading of securities or exchange-traded derivative products; or
3. Change of the trade execution methods of securities.

Section 3. Investigation into Abnormal Trading

§13. Launching Investigation

The Commission shall conduct an investigation (The charge of violating Article 174 of the Act by using information disclosed in a manner that does not fall under any of the subparagraphs of Article 201, Paragraph 2 of the Enforcement Decree of the Act shall also be subject to the investigation; the same hereinafter) in accordance with the type noted in each of the following subparagraphs: (Amended on November 24, 2006; January 28, 2009; July 23, 2025)

1. Regular investigation: The investigation of the issues suspicious of abnormal trading, which have been detected through the market surveillance; and
2. Special investigation: The investigation of the matters that require an immediate action because of the reasons such as the media report or civic appeal or the Commission deems an investigation necessary.

(2) When it is deemed necessary, the Commission may conduct an investigation pursuant to paragraph (1) in collaboration with related institutions. (Amended on

November 24, 2006)

§14. Methods of Investigation

(1) When it is deemed necessary (including the case of requesting the provision of information about financial transaction pursuant to [§4(1)7b] of the Act on Real Name Financial Transaction and Guarantee of Secrecy; the same hereinafter), the Commission may request the member to submit the reports and documents relating to the abnormal trading or the attendance and statement of the personnel implicated (hereinafter referred to as “the submission of information, etc.”). (Amended on November 24, 2006; January 28, 2009)

(2) When requesting the members the submission of information, etc. pursuant to paragraph (1), the Commission shall make such request in writing, stating the reasons, the types of information required, the submission deadline and the date and place to appear, etc. However, in case where it is deemed necessary for the speedy compilation of information, the market surveillance staff (restricted to the staff responsible for the investigation; the same hereinafter in this Section) may visit the head office, branch offices or other business offices of member (hereinafter referred to as “the site visit”) and make the request in person. (Amended on November 24, 2006)

(3) Pursuant to [§404] of the Act, the Commission may, when it is deemed necessary, request the non-member financial investment companies (limited to the investment trading or investment brokerage companies that are engaged in the financial investment business dealing with the securities or exchange-traded derivative products) to submit the relevant information in writing, by stating the reasons, types of information required, submission deadline, etc. (Amended on January 28, 2009)

(4) In addition to the types of information required for investigation, method of requesting submission of information, etc. and site visit noted in paragraphs (1) through (3), the matters necessary for the investigation shall be stipulated in the Enforcement Rules.

§15. Preparation of Question-and-Answer Form, etc.

(1) In an event where in the course of investigation, there is a matter in which the activities of or details of business handled by the member or its officer and employee are in violation of the laws and regulations or improper (hereinafter referred to as “the matters pointed out”), the market surveillance staff may collect the written confirmations from the persons concerned. (Amended on November 24, 2006)

(2) In case where a written confirmation of facts about the matters pointed out pursuant to paragraph (1) is needed, the market surveillance staff may personally hear the statement of persons concerned, and in this case, a question-and-answer form shall be prepared. However, in case the details of confirmation are straightforward or the

person making statement wishes to do so, the person making statement may be allowed to prepare a written statement and submit it. (Amended on November 24, 2006)

(3) In case where the market surveillance staff prepares the question-and-answer form pursuant to paragraph (2), to ensure the voluntary nature of statement, no one shall be forced to make the statement. However, in case of refusing to sign or put his/her seal on the question-and-answer form, the person made the statement shall write down the reasons for the refusal on the form. (Amended on November 24, 2006)

(4) Concerning the matters pointed out noted in paragraph (1), the representative, officer and employee of the concerned member shall be given an opportunity to defend themselves, by sending a list of questions. However, the delivery of the list of questions may be omitted if the matters pointed out are the general matters, of which the nature is deemed to be insignificant, and a written confirmation has been collected for such general matters.

(5) In addition to the written confirmation, question-and-answer form and list of questions noted in paragraphs (1) through (4), other necessary matters shall be stipulated in the Enforcement Rules.

Section 4. Member Inspection

§16. Instigation of Inspection

(1) The Commission shall carry out the member inspection according to the type noted in each of following subparagraphs: (Amended on November 24, 2006; January 28, 2009)

1. Regular Inspection: The inspection that the Commission carries out on a regular basis according to its inspection schedule; and
2. Special inspection: The inspection that is carried out at any time as the Commission deemed it necessary.

(2) The Commission may, when it is deemed necessary, carry out the inspection pursuant to paragraph (1) jointly with the related institutions. [November 24, 2006]

(3) The necessary matters, in connection with the implementation of inspection pursuant to paragraphs (1) and (2), shall be stipulated in the Enforcement Rules. (Amended on January 28, 2009)

§17. Inspection Methods

(1) The inspection shall be carried out either by the site inspection where the market

surveillance staff (restricted to the staff member who is responsible for the inspection; the same hereinafter in this Section) visits the head office, branch offices or any other business locations of member and conduct an examination in person or by the written inspection where an examination is made through correspondence or other means. In this case, the Commission shall send a prior written notification to the members. (Amended on November 24, 2006)

(2) When it is deemed necessary for the inspection pursuant to paragraph (1), the Commission may request the members to submit information, etc. or to conduct its own in-house examination and submit the results thereof to the Commission.

(3) In cases where a site inspection is carried out pursuant to paragraph (1), the market surveillance staff shall carry with him/her the inspection order and the inspection credential issued by the Commission, and present them to the concerned persons. (Amended on November 24, 2006)

(4) The provisions of [§14(2) & (4)] shall be applied *mutatis mutandis* to the written inspections, and [§15] shall be applied *mutatis mutandis* to the preparation of question-and-answer forms, etc. In this case, the staff member who is responsible for investigation shall be construed as the staff member who is responsible for inspection, respectively. (Amended on November 24, 2006)

(5) The matters necessary for inspection, other than the inspection methods and procedures noted in paragraphs (1) through (3), shall be stipulated in the Enforcement Rules.

Section 5. Inter-market Surveillance

§18. Types of Inter-market Surveillance

Inter-market surveillance shall be categorized into the inter-market surveillance, inter-market investigation and inter-market inspection.

§19. Methods of Inter-market Surveillance

(1) Sections 2 through 4 shall be applied *mutatis mutandis* to the methods of inter-market surveillance, inter-market investigation and inter-market inspection. (Amended on November 24, 2006)

(2) Matters necessary for inter-market surveillance, other than paragraph (1), shall be stipulated in the Enforcement Rules.

Section 6. Short Sale Monitoring

§19-2. Examination of Short Sales by Members, etc.

(1) The members shall receive documents such as an agreement for securities borrowing or details of securities balance in relation to the transactions falling under any of the following subparagraphs (hereinafter referred to as the “transactions subject to the short sale violation examination” in this Article) from relevant customers, verify whether the customers concerned have sold securities they did not hold or securities that cannot be settled until the settlement date, and record and keep such details:

1. Transactions subject to the follow-up management of short sale quotations pursuant to [§18-2(1)] of the KOSPI Market Business Regulation, [§9-4(1)] of the KOSDAQ Market Business Regulation, [§13(1)] of the KONEX Market Business Regulation, or the business standards of multilateral trading companies; and (Amended on February 5, 2025)
2. Transactions to sell first during the regular trading hours and to repurchase afterward on the same day, which may fall under the short sale violation stipulated in the Enforcement Rules.

(2) In cases where proprietary transactions of the members fall under the transactions subject to the short sale violation examination in paragraph (1), the members shall verify whether they have sold the securities they did not hold or securities that cannot be settled until the settlement date and record and keep the relevant details.

(3) Notwithstanding paragraphs (1) and (2), paragraphs (1) and (2) shall not apply to transactions subject to the short sale violation examination of a person falling under [§19-3(1)2]. [January 29, 2026]

(4) The members shall regularly report the results of examination pursuant to paragraphs (1) and (2) to the Commission. (Amended on January 29, 2026)

(5) Matters necessary for the short sale examination such as the recording and keeping methods in paragraphs (1) and (2) and the reporting period, deadline and method under paragraph (4) shall be stipulated in the Enforcement Rules. (Amended on January 29, 2026)

[March 8, 2021]

§19-3. Request for Submission of Documents by the Commission

(1) The Commission may request any person falling under any of the following

subparagraphs to submit the documents specified in the relevant subparagraph:
(Amended on March 4, 2025)

1. A person falling any of the following items: Documents specified in the Enforcement Rules, such as an agreement for securities borrowing, details of securities balance etc. (Amended on March 4, 2025)

(a) A member related to following transactions: [March 4, 2025]

(i) Transactions for which a member has conducted a short sale violation examination pursuant to each subparagraph of [§19-2(1)] or [§19-2(2)]; and [March 4, 2025]

(ii) Transactions to sell first and borrow afterward, and other transactions deemed necessary by the Commission to verify compliance with short sale regulations. [March 4, 2025]

(b) A person who is obligated to preserve securities lending and borrowing information pursuant to Article 180-5 Paragraph (2) of the Act. [March 4, 2025]

2. A person who is required to report the balance information, etc. for each security issue to the Exchange in a manner prescribed in the Enforcement Rules pursuant to Article 208-7, Paragraph 2, Subparagraph 1, Item (d) of the Enforcement Decrees of the Act: Documents specified in the Enforcement Rules, such as a certificate of fact, etc. (Amended on March 4, 2025)

(2) Matters necessary for the submission of the documents pursuant to paragraph (1), such as the submission period and method of submitting documents, etc., shall be stipulated in the Enforcement Rules. (Amended on March 4, 2025)

[March 8, 2021]

CHAPTER IV. HANDLING OF OUTCOMES OF INVESTIGATION AND INSPECTION

§20. Reporting and Handling of Outcomes of Investigation and Inspection

(1) Upon the completion of the investigation or inspection, the market surveillance staff shall submit to the Commission a written report on the outcomes thereof. (Amended on November 24, 2006)

(2) When becoming aware of a case violating the Act as a result of the investigation and inspection, the Commission shall notify such case to the Financial Services Commission. In this case, the notification to the Financial Services Commission shall not have any bearing on the disciplinary actions, etc. (referring to the imposition of disciplinary measures pursuant to [§22(1)] or the request for corrective action pursuant to [§22(4)] and the request for disciplinary action pursuant to [§23]; the same hereinafter) taken by the Commission. (Amended on November 24, 2006; January 28, 2009)

(3) When becoming aware of the fact of violating the business-related regulations, which are other than this Regulation, from the outcomes of the investigation and inspection, the Commission shall notify such fact to the concerned Market or multilateral trading company. (Amended on February 5, 2025)

§21. Causes for Disciplinary Actions against Members and Their Officers and Employees

In case where the outcomes of the investigation or inspection reveal that a member or its officers or employees come under any of the following cases, the Commission may take a disciplinary action against such member. Provided that, in cases where a trading participant falls under subparagraph 5 below, the Commission may request the relevant multilateral trading company to take disciplinary action in accordance with Article 404(3) of the Act. (Amended on November 24, 2006; January 28, 2009; July 8, 2015; February 5, 2025)

1. Cases of having violated [§3, §4, §7 and §19-2]; (Amended on March 8, 2021)
2. Cases of having violated the provisions concerning the unfair trading practices stipulated in [§147, §172 through §174, §176, §178, §178-2 and §180] of the Act;
- 2-2. Cases of having violated the business-related regulations; (Amended on February 5, 2025)
3. Cases of having failed to comply with the actions taken by the Commission pursuant to the Act and this Regulation;
4. Cases of having stated false information or omitted to record information in the

reports or documents submitted to the Commission pursuant to the Act and this Regulation, or having neglected to submit such reports or documents; and

5. Cases of obstruction in or noncompliance with the investigation or inspection and non-cooperation in investigation or inspection such as refusal to provide the information requested by the Commission.

§22. Disciplinary Actions against Members

(1) In cases where a member corresponds to any subparagraphs of [§21], the Commission may take the disciplinary measures corresponding to any of the following subparagraphs: (Amended on October 12, 2008; January 28, 2009)

1. To expel from the membership;

1-2. To suspend the whole or part of membership privileges for up to six (6) months;

1-3. To suspend the whole or part of trading privilege for up to six (6) months.

2. To impose the member fine amounting a minimum of KRX 10 million and maximum of KRX 1 billion;

3. To send a notice of warning; and

4. To send a notice of attention.

(2) In cases where a trading participant corresponds to the proviso to the part, other than each subparagraph, of [§21], the Commission may request the multilateral trading company to take disciplinary action in accordance with item 1-2 or 1-3 of paragraph (1). (Amended on October 12, 2007; February 5, 2025)

(3) In case where a member to whom a member fine was imposed pursuant to paragraph (1)2 has failed to pay the fine before the payment due date, the Commission shall apply an additional amount calculated by applying 6/100 per annum to the unpaid member fine, from the day following the payment due date to the day before the payment date. (Amended on November 24, 2006; February 5, 2005)

(4) In cases where it is deemed that the violation of the laws and regulations or improper activities of members was resulted from the internal regulations or application of such internal regulations, or there is a need to revert them to its original state, the Commission may request the concerned member for improvement or corrective actions, and may demand the concerned member to pay attention or may request to submit a written guarantee for implementation of the Commission's dispositions. (Amended on November 24, 2006)

(5) The matters necessary for taking disciplinary measures and requesting for dispositions noted in paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

§23. Request for Disciplinary Action against Officers and Employees of Member

(1) In case where the conducts of officers and employees of a member correspond to any subparagraphs of [§21], the Commission may request the member to take the disciplinary action corresponding to any of following subparagraphs (hereinafter referred to as the “request for disciplinary action”): (Amended on November 24, 2006; January 28, 2009)

1. Officer: Dismissal, suspension of duties, warning or attention; and
2. Employee: Discharge, suspension from office, salary reduction, reprimand, warning or attention.

(2) The matters necessary for the request for disciplinary action pursuant to paragraph (1) shall be stipulated in the Enforcement Rules.

§24. Concurrent Imposition of Disciplinary Measures and Announcement Thereof

(1) The Commission may impose the disciplinary action pursuant to [§22(1)], the request for the disciplinary action pursuant to [§22(2)], the request for the corrective action pursuant to [§22(4)] and the request for disciplinary action pursuant to [§23(1)] concurrently. (Amended on November 24, 2006; February 5, 2025)

(2) When it is deemed necessary, the Commission may make public the details of disciplinary action pursuant to [§22(1)], the request for the disciplinary action pursuant to [§22(2)], or the request for disciplinary actions pursuant to [§23(1)]. (Amended on February 5, 2025)

(3) The necessary matters, other than the concurrent imposition of disciplinary measure, request for corrective action and request for disciplinary action mentioned in paragraph (1) and the publication of the details of the disciplinary measures and requests for disciplinary actions mentioned in paragraph (2), shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§25. Disciplinary Committee

(1) To deliberate the matters specified in each of the following subparagraphs, resulting

from the outcomes of the investigation or inspection, the Commission shall establish the Disciplinary Committee: ((Amended on November 24, 2006; January 28, 2009)

1. Disciplinary measures pursuant to [§22(1)]; and
2. Request for disciplinary actions (excluding the request for warning or attention) pursuant to [§23(1)].

(2) The Disciplinary Committee shall be consisted of seven (7) members who are nominated by the Chairperson of the Commission (hereinafter referred to as “the Chairperson”) and the Chairperson of the Committee shall be appointed by the Chairperson among the committee members: (Amended on November 24, 2006; January 28, 2009)

1. One (1) executive officer of the Market Oversight Division, who is appointed by the Chairperson;
2. Four (4) experts who are knowledgeable in the fields of securities, derivative products or law and have extensive work experiences therein;
3. One (1) full-time officer of the investment trading or investment brokerage companies engaged in the financial investment business dealing with the securities as a member; and (Amended on January 28, 2009)
4. One (1) full-time officer of the investment trading or investment brokerage companies engaged in the financial investment business dealing with the exchange-traded derivatives products as a member. (Amended on January 28, 2009)

(3) Additionally, other matters necessary for the operation of Disciplinary Committee shall be stipulated in the Enforcement Rules.

§26. Prior Notification

(1) When intending to impose disciplinary measures pursuant to [§22(1)] and request to take the disciplinary actions pursuant to [§23], the Commission shall notify the concerned party, etc. (including the member to be disciplined or its representatives, and in case of imposing measures against the officers and employees, the concerned officer or employee or his/her representative; the same hereinafter) each of the following matters by ten (10) days before the date of the Commission meeting: (Amended on November 24, 2006; January 28, 2009)

1. The tile of disciplinary measures, etc.;
2. Names of concerned party or the titles and addresses;

3. The facts that are the cause of the disciplinary measures, etc. and the details of the disciplinary measures and the official base thereof;
4. The explanation about the opportunity to state opinions on subparagraph 3 and the handling method in case of not stating the opinions;
5. The name and address of the organization stating opinions;
6. The time, date and place of opinion statement; and
7. Other matters deemed necessary.

(2) Notwithstanding paragraph (1), when, in view of the nature of the concerned disciplinary measure, it is deemed that the opinion hearing is clearly problematic or not necessary, the prior notification may not be sent. [November 24, 2006]

§26-2. Statement of Opinions

(1) The concerned party, etc. may state his/her opinion verbally or in writing before the Commission imposes the disciplinary measures pursuant to [§22(1)] and requests the disciplinary actions pursuant to [§23]. (Amended on January 28, 2009)

(2) In case where the concerned party, etc. has clearly communicated its intention to surrender the opportunity to state its opinion or did not state its opinion without justifiable reasons, it shall be construed as having no opinion.

[November 24, 2006]

§26-3. Notification of Disciplinary Measures, etc.

(1) When imposing the disciplinary measures, etc. pursuant to this Regulation, the Commission shall present the official basis and justification to the concerned party, etc. and shall inform the necessary matters such as whether or not it is possible to file the motion of objection.

(2) In the event that the Committee imposes disciplinary action on a trading participant pursuant to [§22(1)] or requests for corrective action pursuant to [§22(4)], it may notify the relevant multilateral trading company of the relevant facts. [February 5, 2025]

[November 24, 2006]

§27. Objection

(1) The party, etc., who has been informed of the imposition of disciplinary measures

pursuant to [§22(1)] and the request for disciplinary actions pursuant to [§23], may file an objection with the Commission within thirty (30) days from the date of receiving the notification pursuant to [§26-3]. (Amended on November 24, 2006; January 28, 2009)

(2) Upon receiving an objection pursuant to paragraph (1), the Commission shall resolve the objection within thirty (30) days from the receipt date, unless there are unavoidable circumstances. However, in case where it is not possible to resolve the matter within the concerned period due to the unavoidable reasons, the period may be extended, and in this case, the reasons for extension and the expected resolution time, etc. shall be notified in writing. (Amended on November 24, 2006)

(3) No objection shall be filed against the matter that has been dealt with according to the objection pursuant to paragraph (1). (Amended on November 24, 2006)

(4) The matters necessary for the filing an objection noted in paragraph (1) shall be stipulated in the Enforcement Rules. (Amended on November 24, 2006)

§27-2. Re-deliberation on the Commission's own Authority

When a case comes under any of the following subparagraphs, the Commission may review the case exercising its own authority and cancel or change the imposed measures: (Amended on January 28, 2009)

1. The case where the disciplinary measures, etc. are deemed illegitimate or unjust, when reviewing the legal decisions and the relationships between the facts that were the basis of the disciplinary measures, etc., while taking into the consideration the final decision of the court, the dismissal of suspicion by the Financial Services Commission and the Securities and Futures Commission or the objective of the result of re-deliberation exercising the Commission's authority; and
2. The case where the disciplinary measures, etc. are deemed illegitimate or unjust as a result of uncovering the mistake and omission in documentary evidences or new evidences that contradict the facts used as the justification for disciplinary measures, etc.

[November 24, 2006]

§28. Summary Penalty

(1) As a case of a minor wrong doing among the illegal activities and violations of regulations such as the noncompliance of the reporting obligation of members, when a speedy handling of the case is deemed necessary, the Commission may impose a summary penalty of KRW 2 million or less. (Amended on November 24, 2006)

(2) In cases where a member refuses to accept the imposition of summary penalty or

fails or neglects to pay the summary penalty, the Commission may take disciplinary measures, etc. against such member pursuant to the provisions of [§22] through [§26].
(Amended on November 24, 2006)

(3) The matters necessary for imposition of summary penalty pursuant to paragraph (1) shall be stipulated in the Enforcement Rules.

CHAPTER V. SUPPLEMENTARY PROVISIONS

§29. Delegation of Authority

In relation to the accomplishment of business of the Commission, the matters stipulated in each of following subparagraphs shall be delegated to the Chairperson: (Amended on November 24, 2006; July 20, 2008; January 28, 2009; July 8, 2015)

1. Matters relating to the prevention of unfair trading pursuant to [§5, §5-2, §5-3 and §6(1), (3) & (4)];

2. Receipt of reports pursuant to [§6(2) and §7];

3. Launching of market surveillance, investigation, inspection and inter-market surveillance pursuant to Chapter III; (Amended on January 28, 2009)

3-2. Receipt of reports pursuant to [§19-2(3)] and request for document submission pursuant to [§19-3(1)];

(March 8, 2021)

4. Receipt of reports on the results of investigation or inspection pursuant to [§20] and notification to the Financial Services Commission or the Markets (including multilateral trading companies); (Amended on February 5, 2025)

5. Imposition of additional penalty amount pursuant to [§22(3)] and request for improvement or corrective action pursuant to [§22(4)];

6. Making request for warning and attention pursuant to [§23(1)];

7. Sending a prior notification pursuant to [§26(1)] and publication of disciplinary measures, etc. pursuant to [§26-3]; [November 24, 2006]

8. Imposition the summary penalty pursuant to [§28(1)];

9. Implementation of the decisions of the Commission; and

10. Other matters that the Commission deems it necessary to delegates to the Chairperson because of the urgency or minor nature.

§29-2. Public Opinion Gathering

In case this Regulation (including its Enforcement Rules) is to be amended, public

opinion of interested parties should be gathered pursuant to the Enforcement Rules.

[April 29, 2020]

§30. Enforcement Rules

The Chairperson shall stipulate the matters necessary for the enforcement of this Regulation in the Enforcement Rules.

ADDENDA

(Regulation No. 14 / January 21, 2005)

§1. Effective Date

This Regulation shall become effective on the day the Exchange is incorporated. However, the provisions of [§6(1) & (2)] shall be applied to the futures trading members who were founded pursuant to the Futures Trading Act from the date that the Commission determined by taking into account the readiness of their computer system, etc.

§2. Interim Measures for the Issues Subject to Investigation or Inspection, etc.

The issues and members, which have been selected as the object of investigation or inspection pursuant to the Business Regulation and Futures Regulation of the Korea Stock Exchange, the Business Regulation on the Association Brokerage Market of the Korea Securities Dealers Association, and the Business Regulation of the Korea Futures Exchange before this Regulation becomes effective, shall be deemed as having been selected as the object of investigation and inspection pursuant to this Regulation.

§3. Interim Measures for Disciplinary Action, etc. against Members

The details of disciplinary actions and measures taken against the unlawful, illegitimate or wrongful conducts before the effective date of this Regulation shall be subject to the Business Regulation and Futures Regulation of the Korea Stock Exchange, the Business Regulation on the Association Brokerage Market of the Korea Securities Dealers Association, and the Business Regulation of the Korea Futures Exchange.

§4. Interim Measures for Reporting, etc. by Members

Reporting by the members, the requests or demands made to the members, and the preventive actions against unfair trading practices and the related measures, etc. pursuant to the Business Regulation and Futures Regulation of the Korea Stock Exchange, the Business Regulation on the Association Brokerage Market of the Korea Securities Dealers Association and the Business Regulation of the Korea Futures Exchange, which were taken before this Regulation becomes effective, shall be deemed to have been made or taken pursuant to this Regulation.

§5. Interim Measures for the Disciplinary Committee

In cases where the disciplinary actions and measures taken against a member and its officer and employee as a result of the investigation and inspection by the Commission are the matters to be deliberated by the Disciplinary Committee, until the Disciplinary Committee has been established pursuant to [§25(1)], it shall be deemed that such disciplinary actions and measures have been deliberated by the Disciplinary Committee.

ADDENDA
(Regulation No. 203 / November 24, 2006)

§1. Effective Date

This Regulation shall become effective on December 1, 2006.

§2. Interim Measures for the concurrent imposition of disciplinary measures, etc.

The amended provisions of [§24(1)] shall be applied to the violations of laws and regulations or wrongful activities that have occurred after this Regulation has become effective.

ADDENDA
(Regulation No. 269 / July 20, 2007)

§1. Effective Date

This Regulation shall become effective on September 3, 2007.

§2. Interim Measures for the Designation of Investment Alert Issue

The issues that have been published as the matters of investment alert when this Enforcement Rules becomes effective shall be construed as having been designated as investment alert issue pursuant to the amended provisions of [§5(3)].

§3. Interim Measures for the Designation of Investment Caution Issue

The issues that have been designated as abnormally rising issue pursuant to the Stock Market Business Regulation or the Kosdaq Market Business Regulation when this Enforcement Rules becomes effective shall be construed as having been designated as investment caution issue pursuant to the amended provision of [§5-2(1)] since the concerned designation date.

ADDENDA
(Regulation No. 290 / October 12, 2007)

§1. Effective Date

This Regulation shall become effective on November 1, 2007.

§2. Example in Applying the Imposition of Disciplinary Measures against the Members

The amended provisions of [§22(1) & (2)] shall be applied beginning with the disciplinary actions taken for the first time after the effective date of this Enforcement

Rules.

ADDENDA

(Regulation No. 364 / September 12, 2008)

§1. Effective Date

This Regulation shall become effective on September 16, 2008.

§2. Example in Notification of Refusal to Accept Entrustment of Order

The application of amended provisions of [§6(5)] shall begin with the first entrustment of order that the member refused to accept since this Regulation was put in force.

ADDENDUM

(Regulation No. 405 / January 28, 2009)

This Regulation shall become effective on the date (February 4, 2009) the Financial Investment Services and Capital Markets Act is put into effect.

ADDENDA

(Regulation No. 815 / March 7, 2012)

§1. Effective Date

This Regulation shall become effective on March 12, 2012.

§2. Example in Requesting Trading Suspension of Issue designated as Investment Alert Issue or Investment Risk Issue

(1) The amended provisions of [§5-3(3)] shall be applied starting with the issue designated as an investment alert issue or investment risk issue pursuant to the amended provisions of [§5-3(1) & (2)] after the effective date of this Regulation.

(2) In case where the issue has been designated as an investment risk issue pursuant to [§5-2(2)] of former version of this Regulation on the trading day counting retroactive from the effective date of this Regulation, the request for trading suspension of such issue shall be made according to [§5-2(3)] of former version of this Regulation.

ADDENDUM

(Regulation No. 949 / September 13, 2013)

This Regulation shall become effective on September 13, 2013.

ADDENDUM
(Regulation No. 1210 / July 8, 2015)

This Regulation shall become effective on July 8, 2015.

ADDENDUM
(Regulation No. 1415 / February 8, 2017)

This Regulation shall become effective on the date stipulated in the Enforcement Rules by taking into consideration the time required to develop the computer systems, etc.

ADDENDUM
(Regulation No. 1821 / April 29, 2020)

This Regulation shall become effective on May 8, 2020.

ADDENDUM
(Regulation No. 1925 / March 8, 2021)

This Regulation shall become effective on March 15, 2021. However, the provisions of [§19-3] shall become effective from April 6, 2021.

ADDENDUM
(Regulation No. 2281 / February 5, 2025)

This Regulation shall become effective on March 4, 2025.

ADDENDUM
(Regulation No. 2281 / March 5, 2025)

This Regulation shall become effective on March 31, 2025

ADDENDUM

(Regulation No. 2323 / April 11, 2025)

This Regulation shall become effective on April 23, 2025

ADDENDUM

(Regulation No. 2349 / July 23, 2025)

This Regulation shall become effective on July 28, 2025.

ADDENDUM

(Regulation No. 2371 / October 28, 2025)

This Regulation shall become effective on October 28, 2025.

ADDENDUM

(Regulation No. 2392 / January 29, 2026)

This Regulation shall become effective on January 29, 2026.